

1.

CASE #	CASE NAME	HEARING NAME
CVRI2306928	MATES VS GENERAL MOTORS, LLC	MOTION FOR RELIEVE FROM DISMISSAL

Tentative Ruling: DENY

This matter was originally set for Trial on 6/5/2026. Plaintiff's counsel, John Brummel, requested that the trial be trailed to 6/12/2026. The court granted the request. On 6/12/2026, counsel for Plaintiffs once again requested that the trial be allowed to trail until 6/18/2026. On 6/18/2026, John Brummel, appearing in person in Dept.4, once again requested that the case be trailed until 6/23/2026. On 6/23/2026, counsel for Plaintiff failed to report for Jury Trial in Dept. 4. Defense counsel sent Plaintiff's counsel an email requesting his whereabouts. Plaintiff's counsel did not respond. On motion by defense counsel, the case was dismissed pursuant to CCP § 581(b)(5).

Plaintiff is not entitled to mandatory relief under CCP § 473(b) for failure to appear at trial (*Vandermoon v. Sanwong* (2006) 142 Cal.App.4th 315, 321.), and Plaintiff has not made an adequate showing of "excusable neglect" to merit discretionary relief.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405322	AINSWORTH VS THE REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION TO COMPEL PLAINTIFF TO ANSWER QUESTIONS AT DEPOSITION

Tentative Ruling: GRANT, in part, and DENY, in part. DENY Defendant's alternative request to STAY the action.

No Sanctions.

After a further meet and confer session, the parties were able to resolve 9 of the 24 disputed questions that arose during Plaintiff's depositions. The following fifteen (15) questions were left for the Court to resolve by way of this Motion to Compel: Questions 1, 5, 6, 7, 8, 9, 10, 11, 15, 16, 17, 18, 19, 21, and 23.

Questions regarding Plaintiff's Marital Relationship and Harassing Communications (Questions 1, 5, and 6)

Plaintiff testified that she felt "embarrassed and humiliated because of what [her] ex-husband was doing." (Baskaron Decl. Para.7, Ex. D [Ainsworth Depo. 75:4-5].) She separately attributes those same symptoms—"embarrassment" and "humiliation"—to Defendants' conduct, including failure to accommodate, discrimination, harassment, retaliation, and wrongful termination. (Baskaron Decl. Para. 2, Ex. C at p.2 [citing SROG No.15].) Plaintiff's own attribution of identical symptoms to two contemporaneous causes establishes the *Tylo* nexus (*Tylo v. Sup. Ct.* (1997) 55 Cal.App.4th 1379) as to her ex-husband's harassing conduct during Plaintiff's employment. Plaintiff alleges that Defendants discriminated against her "because of the domestic violence she was subjected to" (First Amended Complaint (FAC) Para.20), and that her ex-husband